

Guardianship Tentative Rulings

August 4, 2025

8:30 a.m.

*******The August 4, 2025 Guardianship calendar will be called in Department 53. *******

The Court's Self Help Center is available by phone and email to assist Guardians and Petitioners. The Self-Help Center does not assist with Guardianships of the Estate. Please see the Court's website for updated information and contact information for the Court's Self Help Center.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 between 8:20 – 8:30 a.m.

The access code is 1464798527 There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar.

Please follow these instructions once a calendar is called:

- 1. Please mute your telephone until your case is called;**
- 2. Please do not place the call on hold;**
- 3. Minimize all background noise during your call;**
- 4. Please identify yourself, each time, prior to speaking with the court;**
- 5. Disconnect when the court has completed your case or cases;**
- 6. The court prohibits the recording of these proceedings**

GUARDIANSHIP OF AVA & JAIDA BARTON AND LAYLA MILLER

Case Number: 25PG-0032883

Disclosure Re: guardianship cases involving Shasta County Health and Human Services Agency-Judge Wood discloses that her step-daughter, Erinn Watts, is the Administrative Branch Director of the Health and Human Services Agency. In that position, Judge Wood's step-daughter does not have any involvement in the investigation, management, prosecution or defense of guardianship cases. However, the Court makes this disclosure of an employment relationship between an investigating agency and the Court's first degree relative as required by California Code of Judicial Ethics.

This matter is on calendar for further proceedings on a Petition for Appointment of Guardian of the Persons. The Petition was filed by non-relative caregivers Theresa and John Webb. Letters of Temporary Guardianship issued on June 4, 2025. The Temporary Guardianship's powers are set to expire today unless further extended.

An amended Petition has been filed curing the defects previously raised and is accepted by the Court, despite that form ICWA-010(A) for each minor is not attached. The original Petition contains an ICWA-010(A) for each minor indicating the Guardians have no reason to believe any of the minors are Indian children. The Court will dispense with notice to the deceased father of Ava and Jaida. There is still no valid proof of service of the Notice of Hearing on the father or paternal grandparents of Layla. Insufficient information has been provided to permit the Court to dispense with notice to these parties. The Court notes the proof of service filed July 29, 2025, indicates father was again served by mail, which is insufficient. The father must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). The paternal grandparents may be served by mail. Prob. Code § 1511(c). Alternatively, the above parties can sign a consent and waiver of notice (GC-211, section 4), in lieu of being served.

The Court has reviewed the Children's Services report, May 1, 2025, which recommends granting the Petition. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage. The matter is continued to **Monday, September 15, 2025, at 8:30 a.m. in Department 42** for further proceedings on the Petition. The Temporary Guardianship is ORDERED to remain in effect until the continued hearing date. Petitioners are ORDERED to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioners cannot serve the parties identified, the Court will require a declaration explaining in detail all efforts of Petitioners to locate and serve them and why they cannot be served, to permit the Court to dispense with notice. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**

GUARDIANSHIP OF KAMDEN BIANCO

Case Number: 22PG-0031746

Disclosure Re: guardianship cases involving Shasta County Health and Human Services Agency-Judge Wood discloses that her step-daughter, Erinn Watts, is the Administrative Branch Director of the Health and Human Services Agency. In that position, Judge Wood's step-daughter does not have any involvement in the investigation, management, prosecution or defense of guardianship cases. However, the Court makes this disclosure of an employment relationship between an investigating agency and the Court's first degree relative as required by California Code of Judicial Ethics.

This matter is on calendar for further proceedings on a Petition for Appointment of Successor Guardian of the Person and a Petition to Remove Guardians filed by Julie Davis. Both Petitions are currently set for a contested hearing on Friday, August 15, 2025. Ms. Davis has requested temporary letters on multiple occasions. The most recent request filed July 16, 2025, was denied pending hearing. There is no proof of service on file for any parties entitled to notice regarding the